Standing Up 4 Nature

Hastings Local Plan Consultation Response

February 2026

1. Background

Standing Up for Nature (SU4N) is a voluntary community action group concerned with protecting and promoting nature in Hastings and Rother. It acts as an umbrella for other local community groups concerned with nature and the environment.

In December 2024, SU4N facilitated a public assembly to review the Hastings Draft Local Plan. About fifty members of the public discussed the Plan, and made recommendations for changes aimed to create a balanced, sustainable, and inclusive planning strategy that met the housing needs of Hastings residents while protecting our natural environment. These recommendations were presented to the Council in early 2025 for inclusion in the revised Local Plan. The recommendations are attached as Appendix 1. Four overarching themes emerged:

A. Ensure all the policies in the Local Plan fully and unambiguously support the achievement of Overarching Strategic Policy 1: Tackling Climate Change.
B. Strengthen the protection of green spaces.
C. Reframe the approach of the Local Plan to make clear that its presumption is for residential development to be provided through the redevelopment of existing built spaces.
D. Link planning policy more strongly and explicitly with housing policy.

SU4N has reviewed the new Draft Local Plan to assess the extent to which it has responded to the changes requested by the public at the assembly, and, where they have not been fully actioned, makes further recommendations. This document presents the results of this assessment, and is submitted in response to the call for comments made through the Regulation 18 consultation process.

2. Overall comments

Many of the recommendations of the public assembly have been incorporated into the Plan. The greater coherence between planning and housing strategies is particularly noted and commended, as is the removal of certain key open spaces as development sites. However, the Local Plan should include a strategic commitment to community-led development, referencing policies in other local plans that give this preferential treatment such the East Cambridgeshire Community-Led Development Supplementary Planning Document.

The proposed loss of the overarching strategic policy OSP 1 – *Tackling Climate Change* – is not acceptable. The Council is strongly urged to reinstate it, and to ensure that all other policies specifically support its achievements. Climate change is the defining issue of our time – an existential threat – and no modern development plan can be considered adequate unless it ensures that tackling climate change is front and centre of all development proposals.

The preference for brownfield site development over greenfield site development needs to be much more strongly articulated. Allocating both brownfield and greenfield sites within the plan effectively gives developers an equal choice between the two, which will mean in practice that greenfield sites are developed to the expense of brownfield. There must be strong policies in place to prevent this, and ensure that all brownfield site options are developed before greenfield. This could be achieved by identifying more brownfield sites in the Local Plan and Brownfield Register; stating no greenfield sites will be given permission until brownfield sites are exhausted; and adopting a clear prioritisation system, such as by adapting the Community Planning Alliance's Greenfield Last Sequential Test.

The East Sussex Local Nature Recovery Strategy, which is due to be published in Spring 2026, should be fully incorporated into the Local Plan. As it will be mandatory under the the Levelling-up and Regeneration Act 2023 to take the LNRS into account in the Local Plan once it is published, the Local Plan should completely integrate the strategies and policies of the LNRS. Areas mapped in the LNRS for ecological connectivity, and other nature recovery purposes, should not be designated for new development but be identified within the Local Plan as areas protected for nature recovery. The ability for wildlife to move among different wildlife sites is crucial to biodiversity conservation and the resilience of ecosystems to stresses such as climate change. Statutory Biodiversity Net Gain calculations account for habitat area and quality but do not compensate for loss of connectivity where development blocks relevant wildlife corridors. The Local Plan should incorporate the LNRS mapping and specify policies on each category in the strategy, including strong limits on development in 'Areas that could become Important for Biodiversity'.

The prioritisation of retrofitting over demolition and new build should be considerably strengthened. At the moment, retrofitting is chiefly discussed only in relation to heritage assets and in sustainable design and construction policies, but there should be a *strategic* policy, akin to Westminster Council's Policy 43, which sets out a strong preference for retrofitting for *all* properties, and the need to justify any new floorspace by demonstrating that development objectives cannot be achieved through retrofitting. Requiring developers to thoroughly explore retrofitting options before considering demolition would reduce the environmental impact that would otherwise occur from new developments, by conserving resources and lowering whole life carbon emissions.

The role of the development plan in bringing vacant and under-utilised properties – especially but not limited to residential – back into use needs to be strengthened. There are many residential properties that are lying empty in Hastings, despite the demand for residential accommodation. The reasons for this need to be examined within the Plan (including the role of onerous planning requirements and processes), and the links with other council-led policies, such as planning enforcement, compulsory purchase powers and council tax policies articulated. The Plan needs to include effective policies for encouraging the renovation and re-use of vacant properties.

In many cases the strategy-level policies do not seem to be significantly more 'strategic' than the development management-level policies. There also seems to be significant repetition between the strategic policies and development management and sector-specific policies. The Plan is more likely to be effective if the structure is rationalised and the different levels of policies either more strongly delineated, or – better – combined into one comprehensive set of policies. This would increase clarity and therefore reduce the potential for confusion and misinterpretation. For similar reasons it is suggested that the site-specific sections should come after both the strategic and development management policies.

3. Specific recommendations

Objective 3.2 (p.13): "Addressing climate change and supporting our carbon neutral ambition through reduced transport emissions, energy efficient buildings and expanded green infrastructure."

ADD: *and through protecting green spaces and the natural environment from development*.

"Delivering the right volume of new homes that people can afford and want in well-designed existing, or new neighbourhoods that make it easier to lead a more active lifestyle."

ADD: *with a strong presumption in favour of residential re-use, refurbishment and re-occupation of existing built infrastructure*.

Paragraph 4.6 (p.16): Development should be prohibited in areas “strictly protected for their natural environmental benefits”.

4.9-4.10 (p.17): Given the need to ensure maximum density on existing built sites, it is suggested that density zoning is not appropriate. Instead, (re)development should focus on achieving the maximum practicable number of affordable dwellings on all sites across the borough, as encouraged by the current National Planning Policy Framework (NPPF).

SP1 (p.19): It is extremely disappointing that the previous OSP1 on tackling climate change as an overarching priority has been removed. Given the climate emergency and its impact on every aspect of life, climate change adaptation and mitigation should remain the overarching objectives of any development plan. It is strongly advocated that OSP1 be reinstated. Although the prioritisation of brownfield sites is welcomed, it is unclear what this would mean in practice: given the allocation of greenfield sites, developers would prefer to develop them first. There should be a stronger presumption for brownfield, with a stipulation that no greenfield sites should be considered unless it is proven that all potential brownfield sites have been redeveloped. The Local Plan should not allocate or promote any greenfield sites for development. The greenfield sites currently proposed in the Plan should be removed, and a more comprehensive list of brownfield sites should be included.

SP1.10 (p.20): Whilst high architectural standards are desirable, they should be such so as to not prevent the efficient refurbishment and re-use of under-utilised built structures. There is a large number of vacant and neglected properties in Hastings that could be brought back into use, but it was identified during the public assembly that the costs of doing this to required standards (in both architectural and procedural terms) made it prohibitive.

SP2 (p.21): A stronger, more evidenced-based link between housing and planning strategy is welcomed; in particular, the focus on affordable housing. However, the percentage of affordable housing provision in the site-specific policies varies (usually from 25% to 40%), and the justification for this variation is not sufficiently strong. Given the intense pressure for affordable housing in Hastings that is acknowledged by the Plan (432 social homes required per annum), the proportion of affordable housing should be higher across the board – at or near to 100%.

SP3 (pp.30-32): This makes no mention of the possibility for intensification of mixed use sites that combine residential and employment uses. There is great potential to, for example, build residential accommodation around and (particularly) above employment-generating uses, without reducing the floorspace for employment use, and this should be encouraged in the Plan. This could include 'air-space' developments above car parks that retain parking while adding additional floorspace above.

SP3.3 (p.33):

ADD: *f. Where practicable, residential use, with a preference for the provision of residential accommodation for on-site workers to reduce travel-to-work journeys.*

SP3.5a (p.33): This could more specifically encourage the provision of car parking *beneath* built structures to maximise the efficient use of space.

SP4 (pp.34-39): Again, there is potential for increasing residential provision through mixed use development, rather than solely business development. There are numerous sites in the town centre and outlying centres (e.g. the former Debenhams site), where commercial activity could be successfully provided at ground floor level, with residential accommodation above. Similarly, new supermarkets and other large retail outlets could be required to provide residential accommodation around and above retail floorspace, as for example in the Amsterdam model, where large supermarkets are ‘hidden’ behind and under apartment blocks.

SP4.4d (p.40): Rephrase to encourage the provision of residential accommodation as a preference, in order to help meet the housing needs of Hastings.

SP4.6 (p.41):

ADD: *d. The scheme successfully integrates residential development into its design.*

SP5 (p.42): There needs to be a much more in-depth analysis of the risks of climate change, along with detailed adaptation and mitigation strategies. The effect of climate change on infrastructure, residences, the economy and the environment need to be considered, together with an analysis of the likely consequences should adequate mitigation and adaptation not take place. Climate change is an existential threat – this section needs to recognise the necessity for urgent and radical action to address it.

SP5 (p.43): "The council will expect that development proposals will:" REPLACE *expect* with *require*.

SP6 (p.45): "The council will take a positive approach to proposals for new development which are either for or include renewable energy generation, zero carbon technologies and their supporting infrastructure."

This is a weak and ambiguous wording, and should be changed to *The council will not take a positive approach to proposals for new development unless they are either for or include renewable energy generation, zero carbon technologies and their supporting infrastructure.*

SP7 (p.48): "Importance will be placed on development proposals making a positive contribution to the architectural quality, historic character, local distinctiveness, and sense of place of historic buildings and areas."

It is not clear what is meant by "Importance will be placed…" or what status this importance has within planning frameworks. Retrofit work to address climate change - which could potentially eliminate our entire town not just its historic character - must have pre-eminent importance. The Local Planning Authority must be proactive in advising and promoting how cost-effective renovations and energy-saving retrofitting can be done in historic buildings and conservation areas.

SP8 (p.50): A number of the statements in this policy are insufficiently specific. It is not clear what "recognising the intrinsic character and beauty of the countryside" entails, for example, or how this translates into specific actions developers must take to ensure that countryside is not compromised environmentally or aesthetically. We need a link to the National Environment Action Plan, and a commitment to go further than nationally mandated biodiversity protections. The Local Nature Recovery Strategy should be embedded in the strategy of this Plan, and reference to it in paragraph 4.106 is too vague.

SP9 (p.53): This should include a specific prohibition from new construction along the seaward seafront. In order not to repeat the mistakes of previous eras (such as building car parks and other inappropriate structures over the beach), and in view of the threat of rising sea levels, the seaward fringe of the borough needs to be reserved for coastal erosion mitigation measures. In other words, this policy needs to be linked more specifically to Policy SC17: Coastal Change Management.

D1 (p.65): Land at Breadsell. In addition to the acknowledged problems with this site for risks and impacts on the Marline Wood SSSI and wider countryside, development here would constitute a strategically unhelpful sprawling outwards of the town. Transport and utilities connections also become more problematic as well as losing agricultural land for food production. Marline Wood would lose connectivity to other wildlife sites as well.

5.40 (p.76): Combined with the lack of a focal point following the removal of the Albert statue, the manner of pedestrianisation of the town centre currently signals the continued acceptance of vehicles, with the

hard surfacing following the contours of vehicular access, rather than pedestrian flows. Redevelopment needs to preclude the use of vehicles in the centre, and the policy should include an explicit link with highway law enforcement to enforce this.

R2: (p.81): Convent on Magdalene Road. The playing fields should be preserved as an amenity space and the existing buildings used for refurbishment and extensions to create new homes.

HS1 (p.97): Sandrock Bends is a vital biodiversity corridor between St Helen's Woods and the High Weald, and as such is not appropriate as a development site. Further, replacing the current vegetation on the site with buildings and hard surfacing will increase water and pollution run-off into St Helen's Wood, exacerbate the erosion of the watercourse that runs through it, and increase the risk of flooding downstream. The site should be removed from the Plan, and instead its ecological importance should be recognised and protected.

HS2 (p.102): Seaside Road is unsuitable for residential development due to projected sea level rise and other flood risks, and should be designated as amenity space in the Local Plan.

HS8 (p.126): Bodiam Drive "a. Provide affordable housing". The percentage of affordable housing should be stated; as this is council-owned land, this should be 100% (as mentioned in the blurb). It should be stipulated that the housing will be owned and managed by the council.

HS10 (p.127): Land at Rock Lane is in the High Weald National Landscape. It is therefore unsuitable for development and should be removed.

HS13 (p.138): Land northwest of Winchelsea Lane is in the High Weald National Landscape. It is therefore unsuitable for development and should be removed.

HS18 (p.151): Tilekiln Farm is an environmentally sensitive site within the High Weald National Landscape and of high importance to the visual setting of Hastings, especially the campsite to the South, itself an important facility for visitors to Hastings. As acknowledged in the Plan, the site – and downstream of the site – is already prone to flooding. The construction of buildings and hard surfacing could only exacerbate this, increasing the frequency and impact of downstream flooding. As a steep, greenfield site of considerable amenity to local residents as an open space accessible by a public right of way, the site should not be included as a development site in the Plan.

HS21 (p.163): Land east of Rock Lane is in the High Weald National Landscape. It is therefore unsuitable for development and should be removed.

HS23 (p.166): Land east of Beaney's Lane is in the High Weald National Landscape. It is therefore unsuitable for development and should be removed.

HS24 (p.169): Land at Graystone Lane. Development would impact on the amenity, ecology and drainage of Speckled Wood and Ore Stream Valley, which are protected open spaces. The proposed land was removed from the previous Local Plan as being unsuitable for development; the need to protect it has not changed and development should not be permitted.

Policy H6 (p.258): The policy currently drafted appears to provide *a priori* acceptance of the demolition of three major social housing sites (Clifton Courts, Earl Street and Four Courts). There is currently no requirement for the developers to demonstrate, with evidence, that retrofitting options have been fully explored or that demolition is absolutely necessary. A 'retrofit first' policy should be applied to all housing throughout the plan including these housing renewal areas. There is also no requirement to guarantee like-for-like replacement with an equivalent or higher number of social housing units in these housing renewal areas. The reference to only accepting a net loss of 'affordable' housing in exceptional circumstances is not strong enough (p.262). Given that 'affordable' can include housing for sale or rent up to

85% of market rate and these renewal areas are currently social rent level properties, there should be a clear requirement that approval to renew these sites must provide an equivalent or higher number of equivalent social rented properties.

7.109 (p.282): While the policy for properties used as short-term holiday lets requiring planning permission to operate is welcomed, this definition needs to be refined (for example, for what proportion of the year must a property be short-term let to fall within the policy?). Consideration should be made to tightening this policy so that it captures a wider range of circumstances and thus increases the supply of housing available to local residents. The policy should explicitly make 'principal residency' a requirement of all new residential developments (a principle recently upheld by the Planning Inspectorate after a developer challenged a requirement that homes had to be used only as someone's main residence).

7.141 (p.295): There appears to be a conflation between age-relevant special needs and the needs of persons with disabilities. There are many people with diverse accessibility requirements who fall under other age brackets. The requirement to provide a reasonable proportion of accommodation suitable for persons living with diverse impairments or special needs of all ages should be strengthened.

7.142 (p.295): "It would be helpful if submitted drawings clearly state on all appropriate plans:"

REPLACE WITH: *Submitted drawings must state on all appropriate plans:*

SC2.4 (p.298): "Development should ensure that it is accessible and adaptable for occupiers at different life stages, allowing ease of access to everyone including those with disabilities and mobility impairments."

REPLACE WITH: *Development should ensure that it is accessible and adaptable for occupiers and users with diverse mobility requirements and other special needs, including older people.*

7.146 (p.299): "…reasoned justification can be presented as to why only a lower standard can be achieved."

This phrasing essentially says that all a developer need do is provide a reason for not meeting the required standard. This sets a very low bar, and in effect creates an expectation that the standards need not be met. While in a very limited number of cases there may be a genuine and overwhelming reason for not meeting the standard, it should be made clear that this would be considered exceptional, and that the presumption is that the development proposal be designed so as to automatically meet the required standards, and if it does not, it will be refused. It should also be stated that not being able to meet the required environmental standards could be considered as a reason for not allowing development. This approach should be mainstreamed throughout the Plan.

7.152 (p.300): The policy of prioritising the repair, refurbishment, reuse or re-purpose of existing buildings is welcomed, but this should be a headline strategic policy.

SC3.g.i (p.303): In line with the council's strategy to be net-zero by 2030, the Plan should require all new buildings to be 'net zero' with regard to their embodied carbon as well as operational emissions, to be evidenced by a whole life carbon assessment of the proposed building. In addition, the policy should be bolstered by the requirement to include in the Sustainability Statement a mandatory, costed, and evidenced 'Retrofit Plan' for all applications which create new floorspace and involve demolition of existing buildings. Demolition should not permitted unless the following requirements are met:

- the proposed development will deliver public benefits which could not be delivered through a suitably comparable retrofit option; and
- the whole-lifetime carbon of a new building would be less or similar to a suitably comparable retrofit option; or
- the proposed development has bespoke operational requirements which could not be provided through the repurposing, adaptation and/or extension of the existing building(s); or

- it is demonstrated that a retrofitting option is not possible or achievable due to structural constraints, demonstrated through an independently verified structural engineering report.

Cost should not be considered a justification for proposing demolition over retrofitting.

SC3.g.ii (p.303): Consideration should be made to setting a minimum level (beginning at 10%) for direct reuse of demolition materials (either on-site or off-site).

SC3.j&k (p.304): The cost of carbon offset could be increased to (at least) between £330 and £880 per tonne of CO_2 emissions rather than standard costs of between £30 and £95 per tonne, as has been done by Westminster Council. A whole lifecycle carbon assessment should be submitted for any new development (counting the carbon cost of demolition, waste disposal, materials and transport rather than just an assessment of the projected energy efficiency of a new building).

7.182 (p.310): This repeats the previous paragraph.

SC7.1a (p.318): The requirement for replica windows and doors could be interpreted as precluding, for example, sensitive double-glazing replacements of existing single-glazing. This is one of a number of examples of policies contradicting Policy SC6, which seeks to balance the need to maintain the historic integrity of a building with the need to allow it to evolve to meet the challenges of climate change. Rather than insisting on the (sometimes inappropriate) punctilious retention of extant forms, it would be better to allow the flexibility to encourage a sensitive, case-specific re-balance of preservation with environmental imperatives, supported by an appropriate justification. A building being listed or in a conservation area should not mean that it is allowed to continue to exacerbate climate change.

7.221 (p.325): Despite the presumption that "major developments should not take place in the NL save in exceptional circumstances," there are numerous instances in the Plan where development *is* proposed within the NL. These should all be removed. It should be for developers to identify and justify development within the NL, rather than for the Plan to hand over large areas of the NL for development.

SC10.5c (p.330): It is very disappointing that the minimum biodiversity net gain (BNG) required remains at 10% - a commitment to 20% would be far preferable. The precedent for setting a 20% commitment has already been established by councils including Guildford; evidence-based justification for the application of such a policy in Kent can be found here. Further, BNG only calculates value of, and impacts to, habitats on or immediately neighbouring a site.

The greater ecological value of many sites is as part of connecting a network of wildlife sites. Any loss of connectivity degrades the biodiversity value of the whole network and makes remaining habitats and species less resilient. The Local Nature Recovery Strategy (LNRS), briefly mentioned in **SC10.7,** collates a lot of relevant information, and includes mapping of areas of strategic importance for nature. The LNRS needs to be embedded in a spatial strategy for nature within this Local Plan, with a strong presumption against development on areas identified in the LNRS as important for wildlife connectivity. This higher level strategy should be presented before consideration of BNG calculations within individual sites.

SC10.5d (p.330): New national rules allowing off-site BNG further underline the necessity of embedding the LNRS in the Local Plan to protect current wildlife corridors and natural habitats that cannot simply be relocated elsewhere. Given the importance of retaining BNG on-site, this sub-policy should be removed.

SC10.6 (p.330): This policy needs to assign resources to enforcing BNG legal agreements because most BNG mitigation and enhancement actions rely on long-term, ongoing, maintenance over many years. If maintenance is neglected, this may result in no net gain, even biodiversity loss. The reference to off-site compensation should be removed.

SC11 (p.332): While this policy is valuable, that development should not negatively affect trees and woodland should be incorporated into the strategic policies. There could also be a stronger commitment to increasing tree cover, for example, requiring the planting of trees alongside roads or walkways, and prioritising tree planting in civic improvement and redevelopment.

SC16 (pp.350-354): Given the liability of Hastings to flooding, there should be a presumption that Class F permitted development rights – hard surfaces incidental to the enjoyment of a dwellinghouse – should be removed for all new development by condition, unless it can be demonstrated that there is adequate water drainage on site to accommodate development that would be allowed under PD. The Council might also consider an Article 4 Direction to the same effect. The Plan should also prioritise the use of planning enforcement powers to ensure that PD rights are not abused, and that hard-surfacing areas in excess of or not in accordance with that allowed by the PD conditions are removed. In fact, it is noticeable that reference to enforcement priorities is absent from the Plan: it would be useful to include a section detailing how the Council will use the powers available to it to achieve the objectives of the Plan, given the amount of non-compliance in Hastings.

ID1 (p.381-384): This section should include more in-depth analysis of the effects of development on education and health provision, including the need to ensure supply meets demand, and that supply is located within easy reach of new residential development. The analysis should include an assessment of current and projected shortfalls, together with a strategic response to ensure that these are eliminated, including the expected role of developer contributions. It could also designate energy efficiency as an infrastructure priority and use infrastructure funds from developers to implement a locally-led programme for the upgrade of all existing homes, prioritising homes of the elderly and low income households.

ID2.2b (p.389): “b. streets are tree lined”

ADD: *with appropriate, climate-resilient native species and a long-term landscaping maintenance plan is in place.*